



Third consultation on UN General Assembly resolution 73/333

27 February 2022



On February 27, the latest draft of the 2022 Declaration (<https://wedocs.unep.org/bitstream/handle/20.500.11822/38436/UNEP50%20Political%20Declaration%20p.m..pdf?sequence=1&isAllowed=y>) was released by the United Nations Environment Programme.

A week earlier, from **February 16 to 18**, UN Member States had held a third annual meeting mandated by UN General Assembly resolution 73/333 (<https://undocs.org/en/A/RES/73/333>).

These **negotiations were extended until Sunday night**, 27 February, following the deadline set within the allotted time. **This declaration is intended to be adopted at the “100th anniversary of UNEP, on 3 and 4 March 2022.”**

Despite more than two years of negotiations, **this text is ultimately devoid of any binding provisions.**

Indeed, opposition to environmental rights has not waned despite significant advances, and this has dispelled the risk of regression **(2)**.

1/ Despite their recognition, environmental rights still face opposition

Following the recognition (<https://news.un.org/en/story/2021/10/1102582>) **by the Human Rights Council of the right to a healthy environment, more and more States have supported this recognition** in the draft declaration.

Nevertheless, the opposition of some Member States has not waned. The **United States** and **Russia** were particularly vocal in their opposition to a right to a healthy environment. In the face of this opposition, **consensus was reached by lowering the ambition of the declaration.**



In particular, **the article recognizing the right to a healthy environment was downgraded.** The final text no longer refers to a right to a healthy environment. It only recognizes that “a clean, healthy and sustainable environment is important for the enjoyment of human rights”.

2/ The risk of regression was averted

The general level of ambition falters

Some Member States such as **Brazil** and **China** made the negotiations difficult by presenting proposals that divided the assembly. Conversely, a small group of delegations, including the **European Union, Colombia, Costa Rica and Switzerland**, tried to raise the level of ambition of the declaration.

Adopted language causing a stir

Fears that the text might be regressive were ultimately dismissed.



The proposal of some States, such as **Algeria, Russia** and **China**, to delete the reference to the notion of “environmental rule of law” was ultimately rejected. This notion was already included in several UN resolutions.

Conclusion

The latest draft declaration is singularly lacking in ambitious proposals. After long negotiations, the result falls short of expectations.

Commentators agree that **this failure could well sound the death knell for Nairobi** ([https://blog.felixdodds.net/2022/02/are-we-preparing-funeral-of-unep.html?](https://blog.felixdodds.net/2022/02/are-we-preparing-funeral-of-unep.html?fbclid=IwAR05NSjXAbLuDQ_R8J5vnJGYGHv8KU3TNYMbKibO11owp5Iefiuw8dCaoig)

[fbclid=IwAR05NSjXAbLuDQ_R8J5vnJGYGHv8KU3TNYMbKibO11owp5Iefiuw8dCaoig](https://blog.felixdodds.net/2022/02/are-we-preparing-funeral-of-unep.html?fbclid=IwAR05NSjXAbLuDQ_R8J5vnJGYGHv8KU3TNYMbKibO11owp5Iefiuw8dCaoig)) as the driving force behind international environmental law.



In the face of these institutional blockages, **hope could come from the United Nations General Assembly**, which will have the opportunity to adopt a resolution recognizing the right to a healthy environment in 2022.

This is in line with the **Human Rights Council resolution** (<https://undocs.org/en/A/HRC/RES/48/14>) **recognizing the right to a healthy environment as a human right.**

The Global Pact Coalition is waging this battle with a coalition of NGOs.